

ARBITRAL TRIBUNAL
SOLE ARBITRATOR: MR. JUSTICE (RETD.) N. K. VARADACHARI
SEAT OF ARBITRATION: NEW DELHI
ARBITRATION CASE NO. ARB/114/2026

Meridian Infra Projects Limited

... CLAIMANT

VERSUS

Konkast Engineering & Construction Private Limited

... RESPONDENT

REJOINDER TO THE STATEMENT OF DEFENCE AND COUNTERCLAIM

1. The Claimant denies the contentions in paragraphs 3 to 10 of the Statement of Defence and Counterclaim and reiterates the Statement of Claim in its entirety.
2. As to paragraph 3, the Claimant's Site Diary records that site access for the third substation was substantially handed over on 05.03.2025 without any written objection by the Respondent at that time; the residual land-clearance formalities referred to were minor and did not impede the Respondent's mobilisation, which was in fact delayed by the Respondent's own equipment planning, taking approximately seven additional weeks.
3. As to paragraph 5, RA Bill No. 7 was certified by the Claimant's Engineer-in-Charge at Rs. 89,40,000 as recorded in the certification register and reproduced in the RA Bills Bundle (Exhibit C-3). The Respondent's figure of Rs. 92,40,000 in Annexure R-1 to the Statement of Defence is an uncountersigned internal working sheet of the Respondent's own billing cell and does not correspond to any document exchanged with or accepted by the Claimant.
4. As to paragraphs 8 to 10, no purchase order, written variation order under Clause 13 of the Contract, or contemporaneous written instruction from the Claimant supports the alleged additional works. The Site Engineer's Memo at Annexure R-3 to the Statement of Defence is a unilateral internal record of the Respondent, prepared after the fact, and does not constitute an instruction of the Claimant capable of founding a claim for extra payment. The counterclaim is denied in its entirety.
5. As to the plea of waiver, the Claimant denies that its site team's conduct in permitting the Respondent to complete the disputed trenching works, without more, amounts to a waiver of the express requirement of a written variation order under Clause 13, particularly where the Contract itself makes written instruction a condition precedent to any claim for additional payment.
6. As to the plea that Clause 22 is a penalty, the Claimant states that the clause is a capped, graduated formula tied to the value of the delayed portion of the works and is a genuine pre-estimate of loss, not an in terrorem penalty, and is enforceable in accordance with its terms.
7. The Claimant reiterates its claim of Rs. 4,52,00,000 together with interest and costs as prayed in the Statement of Claim.

VERIFICATION

I, Neha Kohli, Vice President (Contracts), verify that the contents of this Rejoinder are true and correct.

Verified at New Delhi on this the 5th day of February, 2026.

For Meridian Infra Projects Limited
(Neha Kohli, Vice President (Contracts))
Mr. Rohan Kapadia, Advocate for the Claimant
Enrolment No. DEL/4471/2012